CLAREMONT UNIFIED SCHOOL DISTRICT

RESOLUTION NO. 23-2026

RESOLUTION OF THE BOARD OF EDUCATION OF THE CLAREMONT UNIFIED SCHOOL DISTRICT ORDERING AN ELECTION, AND ESTABLISHING SPECIFICATIONS OF THE ELECTION ORDER

WHEREAS, the Board of Education (the "Board") of the Claremont Unified School District (the "District") believes that, in order to improve the quality of education, and provide safe and healthy learning environments for students, basic repairs to our schools continue to be needed, including upgrading interior classroom finishes, safety and security improvements, replacing or improving heating, ventilation and air condition systems, replacing deteriorating roofs, and making aging classrooms and facilities more energy efficient; and

WHERERAS, the District seeks to improve classrooms for 21st century learning to assist students in core programs such as science, technology, engineering and math; and

WHEREAS, the State of California (the "State") is not providing the District with enough funding for the District to adequately maintain its educational facilities and academic programs; and

WHEREAS, the Board has concluded that the District's only remedy to avoid undermining its educational programs is to secure local funding that the State cannot take away; and

WHEREAS, all District residents benefit from living in communities with good schools, as quality schools not only support student learning, but also maintain strong property values; and

WHEREAS, the Board has received information regarding the possibility of a local bond measure and its bonding capacity; and

WHEREAS, a local measure will help provide funds that are legally required to stay local and cannot be taken away by the State to upgrade schools, protect student safety, and help the District to qualify for State matching funds; and

WHEREAS, the Board and District have solicited stakeholder and community input on school priorities from parents, teachers, staff, the community and civic leaders; and

WHEREAS, the Board believes that District schools should be improved in a fiscally prudent manner, such that a local measure will include public disclosure of all spending, independent annual financial and performance audits, and the formation of a committee of local citizens and business owners to ensure funds are spent as promised and no funds are spent on inappropriate administrator salaries; and

WHEREAS, on November 7, 2000, the voters of California approved the Smaller Classes, Safer Schools and Financial Accountability Act ("Proposition 39") which reduced the

voter threshold for *ad valorem* property tax levies used to pay for debt service on bonded indebtedness to 55% of the votes cast on a school district general obligation bond measure; and

WHEREAS, concurrent with the passage of Proposition 39, Chapter 1.5, Part 10, Division 1, Title 1 (commencing with Section 15264) of the Education Code (the "Act") became operative and established requirements associated with the implementation of Proposition 39; and

WHEREAS, the Board desires to make certain findings herein to be applicable to this election order and to establish certain performance audits, standards of financial accountability and citizen oversight that are contained in Proposition 39 and the Act; and

WHEREAS, the Board desires to authorize the submission of a proposition to the District's voters at an election to authorize the issuance of bonds to pay for certain necessary improvements and enhancements to District educational facilities; and

WHEREAS, the Board hereby determines that, in accordance with Opinion No. 04-110 of the Attorney General of the State of California, the restrictions in Proposition 39 which prohibit any bond money from being wasted or used for inappropriate administrative salaries or other operating expenses of the District shall be strictly monitored by the District's Citizens' Oversight Committee; and

WHEREAS, pursuant to Education Code Section 15270, based upon a projection of assessed property valuation, the Board has determined that, if approved by voters, the tax rate levied to meet the debt service requirements of the bonds proposed to be issued for school facilities will not exceed the Proposition 39 limits per year per $100,000 of assessed valuation of taxable property; and

WHEREAS, Elections Code Section 9400 *et seq.* requires that a tax rate statement be contained in all official materials relating to the election, including any ballot pamphlet prepared, sponsored, or distributed by the District; and

WHEREAS, the Board desires to authorize the filing of a tax rate statement and ballot argument in favor of the proposition to be submitted to the voters at the election; and

WHEREAS, pursuant to the Elections Code, it is appropriate for the Board to request consolidation of the election with any and all other elections to be held on Tuesday, November 3, 2026, and to request the Los Angeles County Registrar of Voters to perform certain election services for the District.

NOW THEREFORE, THE BOARD OF EDUCATION OF THE CLAREMONT UNIFIED SCHOOL DISTRICT DOES HEREBY RESOLVE, DETERMINE AND ORDER AS FOLLOWS:

Section 1. That the Board, pursuant to Education Code Sections 15100 *et seq*., 15264 *et seq*., and Government Code Section 53506, hereby requests the Los Angeles County Registrar of Voters to conduct an election under the provisions of Proposition 39 and the Act and submit to the electors of the District the question of whether bonds of the District

in the aggregate principal amount of up to $77,000,000 (the "Bonds") shall be issued and sold for the purpose of raising money for the projects described in Exhibits "A" and "B" hereto. Both exhibits are directed to be printed in the voter pamphlet. The District's Superintendent, or designee, is hereby authorized and directed to make any changes to the text of the measure, or to the abbreviated form of the measure, as may be convenient or necessary to comply with the intent of this Resolution, the requirements of election officials, and requirements of law.

Section 2. That the date of the election shall be November 3, 2026.

Section 3. That the purpose of the election shall be for the voters in the District to vote on a proposition, a copy of which is attached hereto and marked Exhibit "A," incorporated by reference herein, and containing the question of whether the District shall issue the Bonds to pay for improvements to the extent permitted by such proposition. In compliance with Proposition 39 and the Act, the ballot propositions in Exhibits "A" and "B" are subject to the following requirements and determinations:

(a) the proceeds of the sale of the Bonds shall be used only for the purposes set forth in the ballot measure and not for any other purpose, including inappropriate teacher or administrator salaries or other school operating expenses;

(b) that, as required by California Constitution Article XIII A, Section 1(b)(3)(B), the Board, in establishing the projects set forth in Exhibit "B," evaluated student safety, class size reduction, and the information technology needs of the District;

(c) that the Board shall cause an annual, independent performance audit to be conducted to ensure that the Bond monies are spent only for the projects authorized in Exhibit "B" hereto;

(d) that the Board shall cause an annual, independent financial audit of the proceeds from the sale of Bonds to be conducted until all of the Bond proceeds have been expended;

(e) that the Board shall the appointment of a Citizens' Oversight Committee in compliance with Education Code Section 15278 no later than 60 days after the Board enters the election results in its minutes pursuant to Education Code Section 15274. The Citizens' Oversight Committee shall initially consist of at least seven (7) members and at no time consist of less than seven (7) members, with the possible exception of brief periods to fill any unexpected vacancies. The Citizens' Oversight Committee may not include any employee or official of the District or any vendor, contractor or consultant of the District. The Citizens' Oversight Committee shall include all of the following: One (1) member who is active in a business organization representing the business community located within the District; One (1) member who is active in a senior citizens' organization; One member who is active in a bona fide taxpayer association; One (1) member who is a parent of a child in the District schools; One (1) member is both a parent of a child in the District schools and active in a school site council or PTA. In furtherance of its specifically enumerated purposes, the Citizens' Oversight Committee may engage in any of the following activities relating solely and exclusively to the expenditure of the Proposition 39 bond proceeds:

(i) Receive and review copies of the annual, independent financial and performance audits performed by independent consultant(s);

(ii) Inspect District facilities and grounds to ensure that Proposition 39 bond revenues are expended in compliance with applicable law;

(iii) Receive and review copies of all deferred maintenance proposals or plans developed by the District;

(iv) Review efforts of the District to maximize Proposition 39 bond revenues by implementing cost-saving programs;

(v) Receive from the Board, within three months of District receiving the above-referenced audits, responses to any and all findings, recommendations, and concerns addressed in said audits, and review said responses; and

(f) that the tax levy authorized to secure the Bonds of this election shall not exceed the Proposition 39 limits per $100,000 of taxable property in the District when assessed valuation is projected by the District to increase in accordance with Article XIIIA of the California Constitution.

Section 4. That the authority for ordering the election is contained in Education Code Sections 15100 *et seq*., 15264 *et seq*., and Government Code Section 53506.

Section 5. That the authority for the specifications of this election order is contained in Education Code Section 5322. In connection with ordering the election pursuant to the provisions cited above, the District has obtained reasonable and informed projections of assessed property valuations that take into consideration projections of assessed property valuations made by the County assessor that are available to the District.

Section 6. That the Los Angeles County Registrar of Voters and the Los Angeles County Board of Supervisors are hereby requested to consolidate the election ordered hereby with any and all other elections to be held on November 3, 2026 within the District. As provided in the Elections Code Section 10403, the District acknowledges that the consolidation election will be conducted in the manner described in Elections Code Section 10418.

Section 7. That the Secretary of the Board is hereby directed to deliver a certified copy of this Resolution to the Los Angeles County Registrar of Voters no later than August 7, 2026.

Section 8. That Bonds may be issued pursuant to Section 15264 *et seq*. of the Education Code or pursuant to Government Code Section 53506. The maximum rate of interest on any Bond shall not exceed the maximum rate allowed by Education Code Sections 15140 to 15143, as modified by Government Code Section 53531.

Section 9. That the Board requests the governing body of any such other political subdivision, or any officer otherwise authorized by law, to partially or completely consolidate such election and to further provide that the canvass of the returns of the election be made by any body or official authorized by law to canvass such returns, and that the Board consents

to such consolidation. The Board further authorizes the submission of a tax rate statement and primary and rebuttal arguments, as appropriate, to be filed with the Los Angeles County Registrar of Voters by the established deadlines.

Section 10. Pursuant to Education Code Section 5303 and Elections Code Section 10002, the Board of Supervisors of Los Angeles County is requested to permit the Registrar of Voters to render all services specified by Elections Code Section 10418 relating to the election, for which services the District agrees to reimburse Los Angeles County, such services to include the publication of a Formal Notice of School Bond Election and the mailing of the sample ballot and tax rate statement (described in Elections Code Section 9401) pursuant to the terms of Section 5363 of the Education Code and Elections Code Section 12112.

ADOPTED, SIGNED AND APPROVED this 18th day of June, 2026.

BOARD OF EDUCATION OF THE CLAREMONT UNIFIED SCHOOL DISTRICT

By _____
President

Attest:

_____
Secretary to the Governing Board of the
Claremont Unified School District

STATE OF CALIFORNIA)
) ss
LOS ANGELES COUNTY)

I, Dr. James Elsasser, do hereby certify that the foregoing is a true and correct copy of Resolution No. _____, which was duly adopted by the Board of Education of the Claremont Unified School District at the meeting thereof held on the 18h day of June, 2026, and that it was so adopted by the following vote:

AYES:

NOES:

ABSENT:

ABSTENTIONS:

By _____
Secretary to the Governing Board of the
Claremont Unified School District

EXHIBIT A

"**CLAREMONT UNIFIED SCHOOL DISTRICT CLASSROOM SAFETY, HEALTH AND REPAIR MEASURE.** To repair/upgrade aging classrooms, heating/air conditioning/electrical/plumbing systems, improve safety/security, fix leaky/deteriorating roofs, repair/construct/equip classroom sites/facilities without increasing current taxes, shall the Claremont Unified School District's measure authorizing $77,000,000 of bonds at legal rates, levying approximately $32/$100,000 of assessed value ($5,000,000 annually) while bonds are outstanding, be adopted, requiring audits/independent oversight, no money for inappropriate administrator salaries, all funds staying local?

Bonds – Yes

Bonds – No

EXHIBIT B

FULL TEXT BALLOT PROPOSITION
OF THE CLAREMONT UNIFIED SCHOOL DISTRICT
BOND MEASURE ELECTION NOVEMBER 3, 2026

The following is the full proposition presented to the voters by the Claremont Unified School District.

"**CLAREMONT UNIFIED SCHOOL DISTRICT CLASSROOM SAFETY, HEALTH AND REPAIR MEASURE.** To repair/upgrade aging classrooms, heating/air conditioning/electrical/plumbing systems, improve safety/security, fix leaky/deteriorating roofs, repair/construct/equip classroom sites/facilities without increasing current taxes, shall the Claremont Unified School District's measure authorizing $77,000,000 of bonds at legal rates, levying approximately $32/$100,000 of assessed value ($5,000,000 annually) while bonds are outstanding, be adopted, requiring audits/independent oversight, no money for inappropriate administrator salaries, all funds staying local?

PROJECT LIST

The Board of Education of the Claremont Unified School District is committed to improving the **quality of education** and student learning environment, **protecting student health and safety,** and upgrading facilities for energy conservation, to provide our community with safe, secure and upgraded classrooms which keep pace with 21st Century learning standards. The District conducted a facilities evaluation and received public input in developing this Project List, and further determined that facilities shall be upgraded and **no bond proceeds shall be used to purchase technology equipment**. Teachers, staff, community members and the Board have prioritized key health and safety projects so that the most critical facility needs are addressed.

Basic School Repair and Upgrade Projects

- Improve school safety and campus security systems including security cameras, emergency communications systems, remote door access and creating single points of entry
- Repair and upgrade classrooms and other learning environments
- Upgrade interior classroom finishes
- Improvement student safety at school pick up and drop off areas
- Update failing restrooms
- Update electrical systems
- Improve or replace plumbing systems
- Replace and refurbish deteriorating and leaky roofs
- Replace outdated and inefficient heating, ventilation and air-conditioning systems
- Improve plumbing fixtures and drinking fountains/bottle fillers

- Upgrade electrical systems
- Update athletic facilities for school and community use

* * *

The listed projects will be completed as needed. Each project is assumed to include its share of architectural, engineering, and similar planning costs, program/project management, furniture, equipment, staff training expenses and a customary contingency for unforeseen design and construction costs. In addition to the listed projects stated above, the Project List also includes the acquisition of a variety of maintenance and operational equipment, the reduction or retirement of interim or bridge funding incurred to advance fund projects from the Project List; payment of the costs of preparation of all facility planning, facility studies, assessment reviews, facility master plan preparation and updates, environmental studies (including environmental investigation, remediation and monitoring), design and construction documentation, and temporary housing of dislocated District activities caused by construction projects. In addition to the projects listed above, the repair and renovation of each of the existing school facilities may include, but not be limited to, some or all of the following: repair and replace heating/boiler, hot and cold water piping, gas, water/sewer, drainage and ventilation systems; renovate student and staff restrooms; improve and equip classroom interiors, including painting, carpeting, tack walls and cabinets; improving automated irrigation and building control systems; improve outdoor learning spaces and shade structures; upgrade of facilities for energy conservation or to increase use of renewable energy sources, including solar panels; replace and refurbish worn-out roofs; repair and replace windows, walls, doors, doorframes and drinking fountains/bottle fillers; improve school facilities for disability access; install or upgrade wiring and electrical systems to safely accommodate technology and other electrical devices and needs; upgrade or construct classrooms and support facilities and physical education facilities (including turf and fields), music building, student support buildings, STEAM classrooms, kitchens, cafeterias and food prep facilities, and visual and performing arts spaces; improve quads; repair and replace deteriorating asphalt, fire alarms, emergency communications, intercoms, public announcement, energy management systems (EMS), and security systems; interior and exterior painting and floor covering; construct various forms of storage and support spaces; repair, upgrade or install interior and exterior lighting systems; replace outdated security fences and security systems.

The allocation of bond proceeds will be affected by the final costs of each project. Based on the final costs of each project, certain of the projects described above may be delayed or may not be completed. The budget for each project is an estimate and may be affected by factors beyond the District's control. The final cost of each project will be determined as plans and construction documents are finalized, construction bids are received, construction contracts are awarded and projects are completed. The allocation of bond proceeds may be affected by the final costs of each project. The allocation of bond proceeds may be affected by the District's receipt of State matching funds and the final costs of each project. Demolition of existing facilities and reconstruction of facilities scheduled for repair and upgrade may occur, if the Board determines that such an approach would be more cost-effective in creating more enhanced and operationally efficient campuses. Necessary site preparation/ restoration or geological stabilization may occur in connection with new construction, renovation or remodeling, or installation or removal of relocatable classrooms,

including ingress and egress, removing, replacing, or installing irrigation, utility lines, trees and landscaping, relocating fire access roads, and acquiring any necessary easements, licenses, or rights of way to the property. Proceeds of the bonds may be used to pay or reimburse the District for the cost of District staff when performing work on or necessary and incidental to bond projects.

Bond proceeds shall only be expended for the specific purposes identified herein. The District shall create an account into which proceeds of the bonds shall be deposited and comply with the reporting requirements of Government Code § 53410.

FISCAL ACCOUNTABILITY

FISCAL ACCOUNTABILITY. IN ACCORDANCE WITH EDUCATION CODE SECTION 15272, THE BOARD OF EDUCATION WILL APPOINT A CITIZENS' OVERSIGHT COMMITTEE AND CONDUCT ANNUAL INDEPENDENT AUDITS TO ASSURE THAT FUNDS ARE SPENT ONLY ON DISTRICT PROJECTS AND FOR NO OTHER PURPOSE. THE EXPENDITURE OF BOND MONEY ON THESE PROJECTS IS SUBJECT TO STRINGENT FINANCIAL ACCOUNTABILITY REQUIREMENTS. BY LAW, PERFORMANCE AND FINANCIAL AUDITS WILL BE PERFORMED ANNUALLY, AND ALL BOND EXPENDITURES WILL BE MONITORED BY AN INDEPENDENT CITIZENS' OVERSIGHT COMMITTEE TO ENSURE THAT FUNDS ARE SPENT AS PROMISED AND SPECIFIED. THE CITIZENS' OVERSIGHT COMMITTEE MUST INCLUDE, AMONG OTHERS, REPRESENTATION OF A BONA FIDE TAXPAYERS ASSOCIATION, A BUSINESS ORGANIZATION AND A SENIOR CITIZENS ORGANIZATION. NO DISTRICT EMPLOYEES OR VENDORS ARE ALLOWED TO SERVE ON THE CITIZENS' OVERSIGHT COMMITTEE.

NO INAPPROPRIATE ADMINISTRATOR SALARIES: PROCEEDS FROM THE SALE OF THE BONDS AUTHORIZED BY THIS PROPOSITION SHALL BE USED ONLY FOR THE ACQUISITION, CONSTRUCTION, RECONSTRUCTION, REHABILITATION, OR REPLACEMENT OF SCHOOL FACILITIES, INCLUDING THE FURNISHING AND EQUIPPING OF SCHOOL FACILITIES, AND NOT FOR ANY OTHER PURPOSE, INCLUDING INAPPROPRIATE TEACHER AND SCHOOL ADMINISTRATOR SALARIES AND SCHOOL OTHER OPERATING EXPENSES.

BOND ISSUANCE LIMITS

This measure has strict limits on the issuance of bonds including:

1. Bonds must be phased in over time so that project success can be determined before more bonds are issued.

2. Bonds must have a term not longer than the useful life of the projects being financed.

3. The availability of State matching funds shall be considered in selecting projects.

4. No capital appreciation bonds shall be issued.